

TENTATIVE RULINGS

Date: September 10, 2026

#	Case Name	Tentative
1.	30-2024-01419054 Brandon vs. Teel	1. Motion for Summary Judgment Defendant Rhonda Teel (“Defendant”) moves for summary judgment as to the first cause of action for general negligence and second cause of action for strict liability in this dog bite case. Plaintiff Christopher Brandon (“Plaintiff”) opposed the motion. Defendant argues: (1) the first cause of action for general negligence is barred because (a) Defendant did not own the dog or keep the dog, (b) Defendant had no knowledge of the dog’s existence on the property, and (c) Defendant did not have knowledge of any alleged dangerous propensities of the dog; and (2) the second cause of action for strict liability is barred because (a) Defendant did not have actual knowledge of the dog’s existence on the property, (b) Defendant did not have actual knowledge of the dog’s dangerous propensities, and (c) Defendant did not negligently maintain the premises allowing the dog to escape. The parties agree that Defendant Rhonda Teel owns the property on which the dog bite incident occurred. I. FIRST CAUSE OF ACTION FOR GENERAL NEGLIGENCE Plaintiff’s first cause of action is for general negligence. Defendant argues that she is entitled to summary adjudication of the first cause of action for general negligence because (a) Defendant did not own the dog or keep the dog, (b) Defendant had no knowledge of the dog’s existence on the property, and (c) Defendant did not have knowledge of any alleged dangerous propensities of the dog. “Under California law, a landlord owes a duty of care to his tenant’s invitees to prevent injury from the tenant’s vicious dog when the landlord has ‘actual knowledge’ of the dog’s vicious nature in time to protect against the dangerous condition on his property.” (<i>Yuzon v. Collins</i> (2004) 116 Cal.App.4th 149, 152 and <i>Chee v. Amanda Goldt Property Management</i> (2006) 143 Cal.App.4th 1360, 1369 [“it is well established that a landlord does not owe a duty of care to protect a third party from his or her tenant’s dog unless the landlord has actual knowledge of the dog’s dangerous propensities, and the ability to control or prevent the harm.”].) “[A] duty of care may not be imposed on a landlord without proof that he knew of the dog <u>and</u> its dangerous propensities.” (<i>Chee v. Amanda Goldt Property Management</i> (2006) 143 Cal.App.4th 1360, 1369–1370 [<u>underline emphasis added</u>].) “Because the harboring of pets

is such an important part of our way of life and because the exclusive possession of rented premises normally is vested in the tenant, ... *actual* knowledge and not mere constructive knowledge is required.” (*Ibid.*) “For this reason ... a landlord is under no duty to inspect the premises for the purpose of discovering the existence of a tenant’s dangerous animal; only when the landlord has actual knowledge of the [dangerous] animal, coupled with the right to have it removed from the premises, does a duty of care arise.” (*Id.*, pp. 1369–1370 [underline emphasis added].)

“[A] defendant’s actual knowledge may be shown, not only by direct evidence, but also by circumstantial evidence.” (*Yuzon v. Collins* (2004) 116 Cal.App.4th 149, 163 [citing *Uccello v. Laudenslayer, supra*, 44 Cal.App.3d 504, 514, fn. 4].) “Hence, his denial of such knowledge will not, per se, prevent liability.” (*Ibid.*) “However, actual knowledge can be inferred from the circumstances only if, in the light of the evidence, such inference is not based on speculation or conjecture.” (*Ibid.*) “Only where the circumstances are such that the defendant ‘must have known’ and not ‘should have known’ will an inference of actual knowledge be permitted.” (*Ibid.*)

Here, the Court finds that Defendant Rhonda Teel is the owner of the property at issue but she has never lived at the property and is not the owner of the dog at issue. (See Defendant Rhonda Teel’s Deposition, p. 14.) Rather, Defendant Rhonda Teel’s son Terry and granddaughter Amanda live at the property. (See Defendant Rhonda Teel’s Deposition, pp. 15-16.)

The Court further finds that Defendant Rhonda Teel knew that the dog lived on her rental property but she did not know that the dog had any dangerous propensities. (See Defendant Rhonda Teel’s Deposition, pp. 22-25 and 36.)

Plaintiff presents no evidence that creates a triable issue of material fact regarding Defendant Rhonda Teel’s knowledge about the dog’s dangerous propensities. Plaintiff testified in his deposition that Dianna (who’s car Plaintiff appears to have been servicing at the time of the incident) told Plaintiff “oh, I meant to tell you that the dog – the dog is – is not friendly.” (Plaintiff’s Deposition, pp. 49 and 65.) Still, this does not establish that *Defendant Rhonda Teel* had such knowledge that the dog was “not friendly.”

Rather, the evidence before the Court only establishes that Defendant Rhonda Teel did not have actual knowledge of the dog’s dangerous propensities.

For this reason, the motion for summary adjudication is **GRANTED** as to the first cause of action for negligence.

II. SECOND CAUSE OF ACTION FOR STRICT LIABILITY

Plaintiff’s second cause of action is for strict liability.

Civil Code section 3342 governs strict liability in dog bite cases. Section 3342 states:

		“The owner of any dog is liable for the damages suffered by any person who is bitten by the dog while in a public place or lawfully in a private place, including the property of the owner of the dog, regardless of the former viciousness of the dog or the owner’s knowledge of such viciousness. A person is lawfully upon the private property of such owner within the meaning of this section when he is on such property in the performance of any duty imposed upon him by the laws of this state or by the laws or postal regulations of the United States, or when he is on such property upon the invitation, express or implied, of the owner.” (Civ. Code, § 3342, subd. (a).) As discussed above, Defendant carried her burden to establish that she is not the owner of the dog at issue. She is not the registered owner and does not live at the property where the dog lives. Plaintiff proffers no evidence that Defendant Rhonda Teel is the owner of the dog at issue or acts in any capacity as the owner of the dog. Plaintiff argues that Defendant Rhonda Teel should be liable under section 3342 as a “keeper” of the dog. Plaintiff cites to <i>Hillman v. Garcia-Ruby</i> (1955) 44 Cal.2d 625 for this contention. Plaintiff cites to the following discussion in <i>Hillman</i>: “The keeper of an animal of a species dangerous by nature, or of any animal which he knows, or has reason to know, to have dangerous propensities, is liable, without wrongful intent or negligence, for damage to others resulting from such a propensity.” [Citations.] The liability of the keeper is absolute, for “[t]he gist of the action is not the manner of keeping the vicious animal, but the keeping him at all with knowledge of the vicious propensities. [Citation.] In such instances the owner is an insurer against the acts of the animal, to one who is injured without fault, and the question of the owner's negligence is not in the case. [Citations.]” (<i>Hillman v. Garcia-Ruby</i> (1955) 44 Cal.2d 625, 626.) Plaintiff’s authority would require that Defendant Rhonda Teel have knowledge that the dog at issue had dangerous propensities. As discussed above, there is no evidence before the Court that Defendant Rhonda Teel had knowledge that the dog at issue had dangerous propensities. The motion for summary adjudication is GRANTED as to the second cause of action for strict liability. Accordingly, based on applicable law and as set forth herein, said Motion is GRANTED in its entirety. Defendant Rhonda Teel to give notice.
2.	30-2023-01351588	1. Motion for Summary Judgment Plaintiff and Cross Defendant Shulman Roofing, Inc. (“SRI”) and Cross-Defendant Joe Shulman (“Shulman”) move for summary adjudication pursuant to CCP§ 437c as to certain causes of action set forth in Defendant and Cross-Complainant’s (referred to herein as “Nguyen” or “RP”) Fourth Amended [Cross] Complaint.